BY ORDER OF THE COMMANDER
JOINT BASE ELMENDORF-RICHARDSON

JOINT BASE ELMENDORF-RICHARDSON INSTRUCTION 32-7004

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Civil Engineering

LAND USE CONTROL MANAGEMENT

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This instruction implements Air Force Policy Directive (AFPD) 32-70, *Environmental Considerations in Air Force Programs and Activities*, and is used in conjunction with Department of the Air Force Instruction (DAFI) 32-7020, *Environmental Restoration Program*, and 673d Air Base Wing Instruction (ABWI) 32-1007, *Safeguarding Utilities from Damage*. It prescribes the processes and responsibilities for the management of and compliance with land use controls on Joint Base Elmendorf-Richardson (JBER) and applies to all military and civilian organizations that occupy facilities, or conduct business, on JBER. The current Land Use Control (LUC) areas can be found on the Environmental Restoration map located on the JBER GeoBase webpage (**https://fxqz-ws-geo02v.area52.afnoapps.usaf.mil**). Refer recommended changes and questions about this publication through the appropriate chain of command to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication.* Ensure all records created as a result of processes prescribed in this publication are maintained in accordance with AFI 33-322, *Records Management and Information Governance Program*, and disposed of in accordance with the Air Force Records Information Management System Records Disposition Schedule.

SUMMARY OF CHANGES

This publication has been substantially revised and must be completely reviewed. Major changes include changes to responsibilities and updating of office symbols.

1. General.

1.1. Land Use Control(s) (LUC), often used interchangeably with institutional controls, were established at JBER to prevent exposure to contaminated soil and water. LUCs are used to reduce the potential for exposure to hazardous substances or to enhance the protectiveness of a soil and/or water cleanup remedy. They include restrictions on the use of portions of the shallow aquifer south of the Elmendorf Moraine, limitations on the types of buildings allowed in certain areas (primarily occupancy limitations), and land use designations for certain areas as recreational use only.

1.2. Agreements between the Air Force and the US Environmental Protections Agency (EPA) and/or the Alaska Department of Environmental Conservation established LUCs at JBER. Numerous Environmental Restoration Program (ERP) sites on JBER have established LUCs through Records of Decision or Decision Documents.

1.2.1. LUCs must remain in place as long as a property is not available for unrestricted use or unlimited exposure.

1.2.2. LUCs may include temporary or permanent restrictions or requirements.

1.2.3. A review of LUCs is required when submitting a 673 Air Base Wing (ABW) Form 3, *Base Civil Engineer Work Clearance Request*.

1.2.4. When all cleanup goals are complete for a given site, regulatory review and approval may remove LUCs from a site.

2. Responsibilities.

2.1. When conducting any project or activity on JBER, all personnel, tenants and contractors will comply with all LUCs and applicable Air Force instructions.

2.1.1. JBER supervisors, chiefs, and managers will provide training in LUC implementation and management to all affected personnel.

2.1.2. Base contractors and tenant organizations will have LUC compliance requirements incorporated into their contracts and interagency agreements, as necessary.

2.1.3. Failure to comply with LUCs will be grounds for penalty, in accordance with provisions specified in applicable contract documents.

2.1.4. At project completion, the JBER unit, tenant or contractor will sign a certification of LUC compliance and return the document to the Air Force Civil Engineer Center/Environmental Restoration (AFCEC/CZOP).

2.2. Organizations.

2.2.1. Environmental Restoration (AFCEC/CZOP):

2.2.1.1. Will provide site-specific LUC requirements for all JBER ERP sites, active and inactive.

2.2.1.2. Will identify any known contaminated soil or groundwater sites and monitoring wells for the area of any proposed project and will maintain and update the JBER Land Use Control Management Plan.

2.2.1.3. Must review and sign all 673 ABW Form 3, *Base Civil Engineer Work Clearance Request,* for projects requiring excavation activities for LUC compliance prior to project commencement.

2.2.1.4. Will manage ERP sites and projects to obtain site closure when practicable according to regulation and Air Force policy.

2.2.1.5. Will conduct 5-year reviews and other monitoring activities as required by Record of Decisions and Decision Documents, as well as interim measures.

2.2.1.6. Will insure that contracting service centers program projects as necessary to conduct monitoring activities and long-term management of sites.

2.2.1.7. Will maintain and periodically update the Administrative Record of environmental remediation documents, and will provide all in-house, contractor and community members with Administrative Record access information as needed.

2.2.1.8. Will prepare annual LUC compliance reports and submit reports to Alaska Department of Environmental Conservation (ADEC) and/or EPA in accordance with Record of Decision or Decision Document requirements and regulations.

2.2.1.9. Will disseminate LUC information to personnel involved in LUC management, including 673 Civil Engineering Squadron (CES)/Environmental Quality Planning (CEIEC) for Real Estate issues and 673 CES/Engineering Flight GeoBase (CENME) for inclusion/input in the Geospatial Information System.

2.2.1.10. Will operate an active community relations program that includes updated fact sheets with LUC information, notices through the installation network and group periodical publications, and LUC management briefs at project kick-off meetings or Community Environmental Board meetings.

2.2.1.11. Will maintain copies of signed certifications of compliance, documenting adherence to LUCs during project execution for 2 years.

2.2.1.12. Will maintain the overall LUC Management Plan and will coordinate revisions as necessary of the Plan and this instruction.

2.2.2. Natural and Cultural Resources (673 CES/CEIEC):

2.2.2.1. Will conduct site visits and documentation reviews as needed to ensure compliance with LUCs not otherwise described in a Record of Decision or Decision Document, including permitted landfills, historic properties, wetlands and wildlife areas.

2.2.2.2. Will provide site-specific LUC requirements for all personnel, tenants and contractors as needed for activities and project management.

2.2.2.3. Will provide reviews, analyses and consultation for all Categorical Exclusions, Environmental Assessments or Environmental Impact Statements to ensure compliance with Air Force Manual (AFMAN) 32-7003, *Environmental Conservation,* the National Historic Preservation Act, Archaeological Resources Protection Act, the Native American Graves Protection and Repatriation Act and the Endangered Species Act.

2.2.3. The 673 CES/Engineering Flight (673 CES/CEN) and 673 CES/Installation Management Flight (673 CES/CEI):

2.2.3.1. Will incorporate LUCs into the Base General Plan (BGP) which will be available to all personnel, contractors, and site tenants to aid in the installation planning processes and management. Installation projects or proposals for changes in land use or ownership shall reference the BGP.

2.2.3.2. Will coordinate on any activities or projects which could affect LUCs, to ensure regulatory compliance.

2.2.3.3. Will require a 673 ABW Form 3, at the initial planning phase of all projects, including those initiated by tenant organizations.

2.2.3.3.1. If the project is in an area with LUCs, AFCEC/CZOP will coordinate to include specific information about the LUC(s) in the project location.

2.2.3.3.2. The 673 CES/CEI will ensure a project siting review is complete and that AFCEC/CZOP coordinates on the review and the dig permit review and approval process.

2.2.3.4. Real estate instruments shall include LUC information. In accordance with DAFI 32-7020, real estate instruments shall include land use and groundwater use restrictions identified in Environmental Baseline Surveys (EBS). The EBS will be included in the real estate transaction administrative record.

2.2.3.5. Real Estate will notify AFCEC/CZOP at least 12 months prior to any lease, transfer, or sale of Air Force land to coordinate environmental regulatory compliance in the lease, transfer, or sale terms.

2.2.3.5.1. The EPA and ADEC will be provided review and comment opportunities regarding federal-to-federal transfers.

2.2.3.5.2. LUCs will be included in any EBS or Findings of Suitability for Transfer.

2.2.4. Engineering Flight (673 CES/CEN):

2.2.4.1. Will ensure compliance with LUCs by incorporating general LUC language, now provided by AFCEC/CZOP, in technical provisions and environmental constraints and/or protection measures of construction contract documents.

2.2.4.2. Will maintain and revise the JBER BGP, in accordance with AFI 32-1015, *Integrated Installation Planning*, to include all available and applicable LUC information as required by Record of Decisions, Decision Documents, regulations and Air Force policies.

2.2.4.3. Will inspect and ensure contractors are complying with this Instruction as the Contracting Officer's Technical Representative.

2.2.5. Technical Support AFCEC/CZOP:

2.2.5.1. Will post a LUC map layer to an interactive map on the installation network, allowing all installation organizations access to use LUC data on their desktop computers. LUC data will include boundaries and depths as well as links to details of limitations and controls.

2.2.5.2. As necessary, will incorporate LUCs into installation or site maps for JBER or contractor personnel for project planning/execution.

2.2.6. Operations Flight (773 CES/CEO):

2.2.6.1. Will ensure compliance with LUCs by obtaining the appropriate signatures and concurrences on a 673 ABW Form 3 and submit the 673 ABW Form 3 to the 773 CES Customer Service office for 773 CES/CEO approval and final signature authority. The AFCEC/CZOP must review and sign all 673 ABW Form 3s for projects requiring excavation activities for LUC compliance prior to project commencement.

2.2.6.2. Will maintain approved and completed 673 ABW Form 3 documents, log and file with 773 CES/CEO and make available these work requests and supporting documents for duplication as needed.

2.2.7. Operations Flight Infrastructure Systems (773 CES/CEOI):

2.2.7.1. Will ensure compliance by preparing and coordinating 673 ABW Form 3 for all excavation activities. AFCEC/CZOP must review and sign all 673 ABW Form 3s for projects requiring excavation activities for LUC compliance prior to project commencement.

2.2.7.2. Will revise and coordinate 673 ABW Form 3s for uniform use on all projects executed at installations in which mechanized equipment penetrates or disturbs the ground, or hand digging that penetrates more than 4 inches below the ground surface.

3. Termination of LUCs at JBER.

3.1. The LUCs will terminate as specified in the Record of Decision, Decision Document or applicable documentation, when the sites have met required cleanup goals.

3.1.1. The AFCEC/CZOP will seek prior concurrence from EPA and/or the ADEC to terminate LUCs or modify current land uses.

3.1.2. The AFCEC/CZOP will seek prior concurrence before any anticipated action that may disrupt the effectiveness of the LUCs, or any action that may alter or be inconsistent with the land use assumptions or land uses described in the respective Record of Decision or Decision Document.

3.2. The AFCEC/CZOP will initiate termination of LUCs when a site meets requirements and will coordinate 673 CES/CEI efforts for termination. AFCEC/CZOP will provide updates to the ERP Administrative Record, as necessary.

3.3. The LUC manager will communicate any changes in LUCs, including efforts to terminate, to all necessary JBER flights and sections, including 673 CES/CEI Real Estate for update of the real estate transaction administrative record.

KRISTIN G. AGUILAR. Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFPD 32-70, *Environmental Considerations in Air Force Programs and Activities, 30 July 2018*

DAFI 32-7020, *Environmental Restoration Program, 12 March 2020*

AFI 32-1015, *Integrated Installation Planning,* 30 July 2019, IC-1, 13 October 2020

AFMAN 32-7003, *Environmental Conservation*, 20 April 2020

673ABWI 32-1007, *Safeguarding Utilities from Damage, 04 May 2020*

AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020, IC-1, 28 July 2021

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

673ABW Form 3, *Base Civil Engineer Work Clearance Request*

Abbreviations and Acronyms

ABW—Air Base Wing

ABWI—Air Base Wing Instruction

ADEC—Alaska Department of Environmental Conservation

AFCEC/CZOP—Air Force Civil Engineer Center/Environmental Restoration

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFPD—Air Force Policy Directive

BGP—Base General Plan

CEI—Installation Management Flight

CEIEC—Environmental Quality Planning

CEN—Engineering Flight

CENME—Engineering Flight GeoBase

CEO—Operations Flight

CEOI—Operations Flight Infrastructure

CES—Civil Engineering Squadron

EBS—Environmental Baseline Surveys

EPA—US Environmental Protection Agency

ERP—Environmental Restoration Program

JBER—Joint Base Elmendorf-Richardson

LUC—Land Use Control

OPR—Office of Primary Responsibility